

Radha Rani v. State of U.P. and others

High Court of Judicature at Allahabad · Division Bench · 6 December 2018 · Writ-C No. 40141 of 2018 · **Stay of theft-assessment realization; liberty under cl. 8.2(X)(g); listed**

HEADNOTE

Where a consumer assessed for alleged theft of electricity showed that the police final report had been accepted by the criminal court and the Executive Engineer had no objection, the High Court stayed realization under the 19 March 2018 assessment, listed the writ for admission, and left it open to apply under clause 8.2(X)(g) of the Electricity Supply Code, 2005 for closure of proceedings.

FACTUAL SUMMARY

Radha Rani was assessed for alleged theft of electricity on 19 March 2018 and a demand was raised against her. Police filed a final report in the theft investigation, which the criminal court accepted on 14 July 2018. The Executive Engineer admitted the department had no objection to that acceptance. She petitioned the High Court to restrain realization of the assessment. Notice issued, recovery stayed, and the writ listed; a 5 August 2021 listing was passed over at counsel's request.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::8.2(x)

closure of theft proceedings after accepted police final report

HOLDING

On admitted facts that the police final report in the theft investigation had been accepted by the criminal court and the Executive Engineer had no objection, the Court held that realization of electricity dues on the theft assessment was not justified, stayed recovery under the 19 March 2018 final assessment until further orders, listed the writ for admission, and left it open to the petitioner to apply under Section 8.2(X)(g) of the Electricity Supply Code, 2005 for closure of all proceedings in view of that acceptance. ¶ 1

FLAG Court cited 'Section 8.2(X)(g)' of the 2005 Code (catalog parent 8.2(x)); numbering of nested (g) taken as written.

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — FINAL VALIDITY OF THE 19.3.2018 THEFT ASSESSMENT AND THE WRIT

Counter and rejoinder directed; listed for admission/final dismissal. Only an interim stay was granted. ¶ 1

NOT DECIDED — WHETHER THEFT PROCEEDINGS STAND CLOSED UNDER CLAUSE 8.2(X)(G)

Left to an appropriate application by the petitioner; not decided on the writ. ¶ 1